

neighbours

PAKISTAN

■ By Hasan Zaidi in Karachi

In most countries, newly elected governments are spared harsh criticism for their first few months in office, referred to as the "honeymoon period". No such luck for political parties in Pakistan today. Almost before the victors of the February 18 general elections have had a chance to celebrate—and well before they have had a chance to cobble together a government—they have been subjected to the most pummelling kind of interrogation from the media and civil society. What everyone wants to know is, will the new parliamentarians restore the judges sacked by President Pervez Musharraf when he imposed his ill-advised "Emergency"? And if so, how?

A day after the elections consigned the pro-Musharraf Pakistan Muslim League-Quaid (PML(Q)) to the dustbin of history and swept into imminent power



COURTING CRISIS

Even as Nawaz Sharif and Asif Zardari cobble together a coalition, they are faced with the divisive issue of the restoration of the judiciary that could well decide the fate of Musharraf's presidency

the Pakistan Peoples Party (PPP) and the Pakistan Muslim League-Nawaz (PML(N)), lawyers were already threatening to march to the Parliament if the judiciary was not immediately restored. Supreme Court Bar Association President Aitzaz Ahsan, who has been under house arrest for the last few months, issued a call from his home for a "long march" on March 9. The All Parties Democratic Movement (APDM)—a conglomerate of small parties including Imran Khan's Tehrik-e-Insaaf which had boycotted the polls because they were under Musharraf's watch—issued similar statements. The media, sensing a divergence of views between the heads of PPP and PML(N), grilled them with every chance it got.

The issue of the judiciary is a live-wire one. Since the judicial crisis was sparked on March 9 last year with Musharraf's "suspension" of Supreme Court Chief Justice Iftikhar Chaudhry,

discontent had been brewing in Pakistan, fuelled by the wide coverage in the media of the lawyers' strident movement. It reached a boiling point when, despite Chaudhry's reinstatement by the Supreme Court, Musharraf sacked him and 60 other judges, who refused to endorse his proclamation of Emergency on November 3.

Analysts feel that the stunning success of PML(N) despite its poor pre-election organisation is due to Sharif's unequivocal stand in favour of restoring the sacked judiciary. But now that the time has come to deliver on electoral promises, the complex issues involved in restoring the judiciary have come to the fore. Legal and constitutional experts are divided on how exactly this is to be accomplished. Ahsan believes all that is needed is an executive order, similar to the one Musharraf used to dismiss the judges. Sharif thinks all that is needed is a simple

majority in the National Assembly, while Musharraf's counsels claim nothing less than a constitutional amendment with a two-thirds majority in both Houses of Parliament will suffice.

With seven PML(Q) senators announcing the formation of a forward bloc to press for the restoration of the judiciary, there are indications that a good number of PML(Q) senators—the party and its allies have 58 members in the 100-seat Senate—may defect to the winning side. In such a case, PPP, PML(N) and allied parties could put together a two-thirds majority. Barring that, the restoration is likely to be a protracted, divisive battle, as the matter is bound to be put before the sitting Supreme Court judges, who defied lawyers to take oath under the November 3 Provisional Constitutional Order. A restoration of the pre-November 3 judiciary would also bring in tricky legal issues of what happens to the sitting